

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Manuel	Team: Team # 4	CCRB Case #: 201214377	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 10/25/2012 4:35 PM	Location of Incident: Atlantic Avenue and Buffalo Avenue; 81st Precinct stationhouse	18 Mo. SOL 4/25/2014	Precinct: 81
Date/Time CV Reported Sat, 11/03/2012 9:57 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 11/03/2012 9:57 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jimmy Clerge	01541	945595	081 PCT
2. An officer			
3. SGT Richard Mezzatesta	03513	930735	081 PCT
4. POM Juancarlos Cruz	03857	933723	081 PCT
5. POM David Paray	07591	939173	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Francisco Delossantos	09057	928178	081 PCT
2. SGT Wayne Lowery	05557	928672	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Force: An officer used a chokehold against § 87(2)(b)	A . Officer(s) Unidentified
B . POM David Paray	Force: PO David Paray used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Jimmy Clerge	Force: PO Jimmy Clerge used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Juancarlos Cruz	Force: PO Juancarlos Cruz used physical force against § 87(2)(b)	D . Unsubstantiated
E . SGT Richard Mezzatesta	Force: Sergeant Richard Mezzatesta used physical force against § 87(2)(b)	E . Unsubstantiated

Case Summary

On November 3, 2012, § 87(2)(b) filed this complaint with the CCRB online at NYC.gov (encl. 6-8). On October 25, 2012, at approximately 4:35 p.m., PO Jimmy Clerge, PO Juancarlos Cruz, PO David Paray, and Sgt. Richard Mezzatesta arrested § 87(2)(b) at Atlantic Avenue and Buffalo Avenue in Brooklyn. The following allegations resulted:

- **Allegation A- Force: An officer used a chokehold against § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **officer unidentified**.

- **Allegation B- Force: PO David Paray used physical force against § 87(2)(b)**
- **Allegation C- Force: PO Jimmy Clerge used physical force against § 87(2)(b)**
- **Allegation D- Force: PO Juancarlos Cruz used physical force against § 87(2)(b)**
- **Allegation E- Force: Sgt. Richard Mezzatesta used physical force against § 87(2)(b)**

§ 87(2)(g)

It is, therefore, recommended that **Allegations B, C, D, and E** be closed as **exonerated**.

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, § 87(2)(b)*

§ 87(2)(b)

Arrest Photograph

In his arrest photograph, taken on October 25, 2012, § 87(2)(b) can be seen with a darkened swollen area under his right eye, red color on his right eyeball, and scrapes across the bridge of his nose (encl. 60).

CCRB Statement

On January 22, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 11-16). At approximately 3:00 p.m. on October 25, 2012, § 87(2)(b) left his girlfriend's home, located at Pitkin Avenue and Logan Street in Brooklyn, to pick his son up from school. § 87(2)(b) smoked a marijuana joint at an unknown time earlier that day, but was not otherwise under the influence of alcohol or any other drug or illegal substance.

§ 87(2)(b) drove his grey 2001 Toyota Camry down Pitkin Avenue. § 87(2)(b) then took an unknown route to an unknown intersection in the Crown Heights neighborhood of Brooklyn. § 87(2)(b) stopped at a red light and left space in front of him as he usually does to avoid being pushed into oncoming traffic.

A black female, who § 87(2)(b) did not know and who was identified by the investigation as § 87(2)(b) stopped her vehicle behind § 87(2)(b)'s vehicle and repeatedly honked her horn, made "obscene" gestures, and yelled out of her window at § 87(2)(b). In response, § 87(2)(b)

yelled out, “It’s a red light!” When the light turned green, § 87(2)(b) drove for a few minutes before realizing that § 87(2)(b) was following him. In an attempt to lose her, § 87(2)(b) employed evasive driving techniques. § 87(2)(b) made numerous turns, stopped at green lights and proceeded immediately before the light turned red, and switched lanes. § 87(2)(b) however, continued to follow § 87(2)(b) and passed through two red lights and a stop sign while doing so. At no point during this portion of the incident did § 87(2)(b) drive through a red light or stop sign. § 87(2)(b) drove to Fulton Street and Utica Avenue, where he stopped at a red light. § 87(2)(b) stopped behind his vehicle. § 87(2)(b) exited his vehicle and used his cell phone to take a picture of § 87(2)(b) her car, and her license plate.

In an effort to dissuade § 87(2)(b) from following him, § 87(2)(b) decided to “make a scene.” § 87(2)(b) yelled out, “Everybody! She’s following me!” § 87(2)(b) yelled at § 87(2)(b) “Stop following me! Why are you following me? I’m going to call the police.” § 87(2)(b) responded, “I am the police,” to which § 87(2)(b) responded, “If you’re the police, then show me your badge.” § 87(2)(b) stated, “Well, my man is the police and I’m on the phone with him right now.”

§ 87(2)(b) did not respond to § 87(2)(b)’s proclamation, instead choosing to return to his vehicle and continue to his son’s school. § 87(2)(b) drove on Fulton Street to Troy Avenue, and made a right turn onto Troy Avenue. § 87(2)(b) continued to follow § 87(2)(b) When he was on Troy Avenue between Fulton Street and the street immediately following it, he noticed an unmarked Impala with flashing lights move in behind him. § 87(2)(b) realized that there were police officers in the Impala who wanted him to pull over, but he did not stop because he believed that he had no reason to do so. § 87(2)(b) had not committed a crime and was afraid that an officer in the Impala may have been § 87(2)(b)’s boyfriend. § 87(2)(b) turned onto an unknown side street, then onto Atlantic Avenue, and continued driving east on Atlantic Avenue. § 87(2)(b) did not know the speed at which he drove at this time. Traffic was heavy, so § 87(2)(b) had to weave through it in an effort to elude the Impala. § 87(2)(b) did not recall whether he ran any red lights or stop signs at this time.

At some point, § 87(2)(b) stopped following § 87(2)(b) The black Impala, however, followed § 87(2)(b) through traffic. As § 87(2)(b) drove on Atlantic Avenue, he noticed a Blue/Silver Impala with its lights flashing join the black Impala in the pursuit of his vehicle. § 87(2)(b) did not notice any marked police vehicles and noted that, had he seen any, he would have pulled over immediately. When § 87(2)(b) reached the intersection of Atlantic Avenue and Buffalo Avenue, he pulled over to the side of the road and stopped his vehicle because he realized that he would not be able to evade the officers without possibly hurting someone.

Upon stopping his vehicle, § 87(2)(b) open the door and exited. § 87(2)(b)’s back was to his vehicle. Initially, § 87(2)(b) stated that he placed his hands up and in the air. As the interview progressed, however, § 87(2)(b) indicated that he held his hands out and in front of his body at chest level. § 87(2)(b) did not have anything in his hands. § 87(2)(b) yelled at unidentified pedestrians, “Call 911! Call the real police!”

§ 87(2)(b) noticed that one of the Impalas stopped to the right of his vehicle, but he did not know where the second Impala stopped. As § 87(2)(b) yelled towards the pedestrians, he felt a hand grab his left forearm. § 87(2)(b) placed his right hand up in the air, at which time he felt someone grab his right wrist. Seconds later, there was a forearm around the front of § 87(2)(b)’s neck. § 87(2)(b) continued to yell out for someone to call 911, but the pressure caused by the forearm against his neck made it difficult for him to continue speaking. § 87(2)(b) had difficulty breathing and his vision began to fade. § 87(2)(b) collapsed to his knees and fell forward onto the ground. § 87(2)(b) then passed out.

§ 87(2)(b) did not see the officers who grabbed him and could not describe or identify them. At no time did the officers say anything to § 87(2)(b) and § 87(2)(b) did not say anything to

the officers. § 87(2)(b) did not resist the officers' attempts to apprehend him. At no time did § 87(2)(b) punch, kick, strike, or spit at any officers. § 87(2)(b) did not notice whether any civilians became involved in his arrest. § 87(2)(b) did not notice whether there were any uniformed officers at the location.

§ 87(2)(b)'s next memory was waking up in a holding cell. § 87(2)(b) passed out again, but woke up when he felt himself being carried to an ambulance and transported to § 87(2)(b), where he was told that he had a dislocated right shoulder. § 87(2)(b) was in pain, but did not know about any other injuries at this time.

After being treated at § 87(2)(b), § 87(2)(b) was taken to the 81st Precinct stationhouse. An unidentified officer (5'9" tall black Caribbean male, medium build, in his 30s, with a receding hairline/bald head, in plainclothes) fingerprinted § 87(2)(b) but stated that he was not § 87(2)(b)'s arresting officer. § 87(2)(b) asked the officer to provide his name, and the officer identified himself as Jack, John, or Jean. § 87(2)(b) responded, "So what's your last name?" but the officer did not respond. § 87(2)(b) however, had no reason to believe that the name the officer provided was not his last name. § 87(2)(b) did not know whether the officer was present for his arrest.

§ 87(2)(b) was removed to Brooklyn Central Booking, where he complained of pain to EMS. § 87(2)(b) was taken to § 87(2)(b), § 87(2)(b)

§ 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) had a small amount of marijuana in the armrest of his vehicle, which was seized as arrest evidence by the NYPD.

Witness: § 87(2)(b)

- § 87(2)(b) is a black female. § 87(2)(b)

Telephone Statement

On April 1, 2013, § 87(2)(b) contacted the CCRB and provided a telephone statement (encl. 17). On October 25, 2012, § 87(2)(b) and her younger sister were driving in § 87(2)(b)'s vehicle in Brooklyn when they stopped at a red light at an unknown intersection. The vehicle in front of them was several feet behind the actual intersection and there were no cars in front of it. When the light turned green, the vehicle did not move. § 87(2)(b) honked her horn once, at which time the male driver of the vehicle, identified by the investigation as § 87(2)(b) began yelling and cursing loudly out the window. § 87(2)(b) then sped off. § 87(2)(b) continued on her route, which happened to be behind that of § 87(2)(b). § 87(2)(b) kept maneuvering his vehicle in a manner that prevented § 87(2)(b) from passing him and led § 87(2)(b) to believe that he was intentionally blocking her path. Suddenly and without warning, § 87(2)(b) stopped in the middle of the street, causing § 87(2)(b) to stop short. At that time, § 87(2)(b) smelled marijuana, saw smoke coming out of § 87(2)(b)'s vehicle, and realized that he was highly intoxicated.

§ 87(2)(b) exited his vehicle and approached that of § 87(2)(b) at which time she smelled marijuana on his person. § 87(2)(b) began yelling at § 87(2)(b) and threatening to kill her. § 87(2)(b) took pictures of § 87(2)(b) and her vehicle. He then returned to his vehicle. § 87(2)(b) called 911 and immediately drove past § 87(2)(b)'s vehicle. A few minutes later, § 87(2)(b) was met by an a brown-skinned Hispanic male officer in his early 30s, identified by the investigation as PO Juancarlos Cruz. PO Cruz pulled his unmarked gray vehicle up alongside § 87(2)(b)'s vehicle, and § 87(2)(b) explained the situation to him. As PO Cruz and § 87(2)(b) spoke, § 87(2)(b)

§ 87(2)(b) spotted § 87(2)(b) and identified him to PO Cruz as the person against whom she was complaining. § 87(2)(b) drove up to where § 87(2)(b) and PO Cruz were speaking, but continued driving when he realized that § 87(2)(b) was speaking with police officers. PO Cruz pursued § 87(2)(b) in his vehicle. § 87(2)(b) followed PO Cruz's vehicle at a distance. At various points during the pursuit, § 87(2)(b) would inexplicably stop driving and suddenly drive off before officers could engage him. On several occasions, § 87(2)(b) came close to striking pedestrians and other vehicles. § 87(2)(b) was unable to detail the route of the pursuit, but noted that she stopped following when § 87(2)(b) led PO Cruz the wrong way down a one way street. § 87(2)(b) did not know how the vehicular pursuit ended and did not witness § 87(2)(b)'s arrest.

Attempts to Contact Civilians

§ 87(2)(b) and § 87(2)(b) were identified as civilians who may have been in the holding cell at the same time as § 87(2)(b). Multiple attempts were made to contact them. Please call letters were mailed to all four civilians on June 17, 2013. § 87(2)(b) and § 87(2)(b) called the CCRB on June 20, 2013 and left voicemail messages stating that they received the letters and providing their phone numbers. During a phone call on June 21, 2013, § 87(2)(b) stated that he had no recollection of the incident. He noted that he was pepper-sprayed during his arrest, had problems with his vision, and was isolated from the other prisoners. On July 3, 2013, § 87(2)(b) was called. He did not answer, and a voicemail message was left asking him to call the CCRB. A Lexis Nexis search on July 3, 2013 found no phone numbers for § 87(2)(b) or § 87(2)(b) but confirmed their addresses. Final please call letters were sent to § 87(2)(b) and § 87(2)(b) on July 11, 2013. § 87(2)(b) called the CCRB on July 29, 2013. He said that he had no recollection of the incident and speculated that he may have been on the way to Central Booking at the time.

NYPD Statements:

Subject Officer: PO JIMMY CLERGE

- *At the time of the incident, PO Clerge was § 87(2)(b) old. He is a black male, § 87(2)(b) with black hair and brown eyes.*
- *On October 25, 2012, PO Clerge worked from 9:30 a.m. to 6:05 p.m. with Sgt. Mezzatesta and PO Delossantos, assigned to Anti-Crime in the 81st Precinct. They wore plainclothes and drove a black unmarked Chevrolet Impala.*

Memo book

PO Clerge wrote the following memo book entry regarding the incident: at 4:37 p.m., one person was arrested on the corner of Atlantic Avenue and Buffalo Avenue (encl. 18-19).

Complaint Report

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Medical Treatment of Prisoner Form

In the remarks section of the medical treatment of prisoner form prepared for § 87(2)(b) PO Clerge wrote that § 87(2)(b) fled from officers, resisted arrest, and suffered a cut to his face. § 87(2)(b) showed emotionally disturbed behavior by banging his head on the cell walls and the bus walls while EMS was transporting him to the hospital (encl. 25).

Line of Duty Injury Report

In his line of duty report, PO Clerge wrote, “While attempting to apprehend a fleeing suspect, my right hand got crushed between the suspect and the ground, causing pain to my right hand” (encl. 26-28).

CCRB Statement

On April 24, 2013, PO Jimmy Clerge was interviewed at the CCRB (encl. 34-36). At approximately 4:35 p.m. on October 25, 2012, PO Clerge, Sgt. Mezzatesta, and PO Delossantos were flagged down by § 87(2)(b) identified by the investigation as § 87(2)(b) at Lewis Avenue and Bainbridge Street in Brooklyn. § 87(2)(b) told PO Clerge that a vehicle was following her, trying to run her off the road, and cutting her off. She also mentioned that the driver was smoking marijuana. § 87(2)(b) had previously called 911, and at the same time as the officers were speaking to her, the job came over the radio. § 87(2)(b) drove by, and § 87(2)(b) pointed to § 87(2)(b)'s vehicle and said, “That’s the car. That’s the person.” § 87(2)(b) looked at them and sped off at approximately 45 miles per hour. The officers turned on their lights and sirens, and followed § 87(2)(b)'s car, trying to pull it over. The officers followed § 87(2)(b) for approximately ten blocks, from Lewis Avenue and Bainbridge Street to Atlantic Avenue and Buffalo Avenue. As they were following § 87(2)(b) the officers went over the radio to report what was occurring and to relay their location to additional officers in the area so that they could assist in the pursuit. § 87(2)(b) did not pull over for 10 blocks, but it was a “follow, it wasn’t a vehicle chase.” § 87(2)(b) drove through multiple red lights and stop signs in the congested roads. § 87(2)(b)'s driving caused many pedestrians to jump out of the way and cars to swerve to avoid being struck.

An unmarked 81st Precinct Conditions vehicle blocked § 87(2)(b)'s vehicle at the intersection of Atlantic Avenue and Buffalo Avenue. PO Clerge did not recall the identities of the Conditions officers, except for Sgt. Poseidon Soundias. § 87(2)(b) exited his vehicle and started running. PO Clerge, PO Delossantos, Sgt. Mezzatesta, and the Conditions officers followed on foot. § 87(2)(b) only took five steps before the officers grabbed him. PO Clerge did not recall which part of § 87(2)(b)'s body the officers grabbed, and did not recall which officer made the initial contact. PO Clerge noted, however, that almost immediately, all of them were “on top” of § 87(2)(b) as the momentum of the contact caused § 87(2)(b) and the officers to fall to the ground. PO Clerge did not recall how § 87(2)(b) landed on the ground, or what part of his person he landed on. PO Clerge believed that § 87(2)(b) landed on PO Clerge’s hand because he sustained an injury to his hand. PO Clerge noticed that § 87(2)(b) smelled of marijuana.

At no time did PO Clerge or any officer make contact with § 87(2)(b)'s neck. At no time did PO Clerge or any officer use a chokehold against § 87(2)(b). At no time did § 87(2)(b) state that he could not breathe. § 87(2)(b) was conscious for the duration of his apprehension.

Once on the ground, § 87(2)(b) flailed his arms and kicked his legs. The officers grabbed at § 87(2)(b)'s arms, but were unable to maintain contact. At some point, § 87(2)(b) managed to maneuver his body so that he was face down and his arms were tucked underneath his body. § 87(2)(b) continued to wiggle his torso and kick his legs. In doing so, § 87(2)(b) kicked one of the officers, though PO Clerge did not recall which. § 87(2)(b) exhibited a great amount of strength, which made it difficult for the officers to control him. PO Clerge repeatedly ordered § 87(2)(b) to

“stop resisting” and to “give me your hands,” but § 87(2)(b) did not verbally respond and did not physically comply.

At no time did PO Clerge or any officer he observed punch, kick, or otherwise strike § 87(2)(b). The only force that officers used was pulling § 87(2)(b)'s arms so that they were behind his back. When the officers were finally able to remove § 87(2)(b)'s arms from beneath his body, they handcuffed him.

A crowd of people gathered around the officers and § 87(2)(b) but PO Clerge was unable to estimate the size of the crowd. None of the civilians attempted to become involved in the incident. There were additional officers and police vehicles present at the location, but PO Clerge did not recall the identities of those officers, and noted that they did not assist in apprehending § 87(2)(b).

§ 87(2)(b) was taken to the 81st Precinct stationhouse and placed in a holding cell. He began banging his head on the bars and the walls. There were no other prisoners in the cell at the time. § 87(2)(b) was deemed to be an emotionally disturbed person, and ESU was called to remove § 87(2)(b) to the hospital via ambulance. § 87(2)(b) had injuries, the nature of which PO Clerge did not recall at the time of this interview, but noted that all of § 87(2)(b)'s injuries were self-inflicted, as he did not have them prior to arriving at the stationhouse. At no time did § 87(2)(b) complain of injury.

Subject Officer: SGT RICHARD MEZZATESTA

- *At the time of the incident, Sgt. Mezzatesta was § 87(2)(b) old. He is a white male, § 87(2)(b) with black hair and brown eyes.*
- *Sgt. Mezzatesta worked from 9:31 a.m. to 6:15 p.m., assigned as the Anti-Crime supervisor. He, PO Clerge, PO Cruz, and PO Paray were dressed in plainclothes and were assigned to a black unmarked Impala.*

Memo Book

Sgt. Mezzatesta wrote the following memo book entries regarding the incident: At 3:45 p.m., he received a call that someone was menacing at Utica Avenue and Fulton Street. At 4:37 p.m., PO Clerge arrested one person for § 87(2)(a) 160.50 after vehicle pursuit (encl. 37-38).

CCRB Statement

On June 19, 2013, Sgt. Mezzatesta was interviewed at the CCRB (encl. 39-41). At approximately 3:45 p.m. on October 25, 2012, Sgt. Mezzatesta received a report of menacing at the intersection of Utica Avenue and Fulton Street in Brooklyn. As Sgt. Mezzatesta and his team drove to the location, Central reported that § 87(2)(b) needed assistance. The complainant, identified by the investigation as § 87(2)(b), reported to Central that she was driving around the area because someone was following her. The officers arrived at the identified location and attempted to call § 87(2)(b) back numerous times so that they could find out where she was. Eventually, they were able to find § 87(2)(b). They pulled their vehicle alongside hers. § 87(2)(b) identified herself as § 87(2)(b), and explained that a male was following her around, yelling at her, and pointing something at her. The officers asked whether the object was a firearm, and § 87(2)(b) stated that she could not tell what it was. As § 87(2)(b) spoke with the officers, the male, later identified as § 87(2)(b), drove past. § 87(2)(b) pointed at § 87(2)(b)'s vehicle and stated, “That’s him. That’s the man who is chasing me.”

The officers left § 87(2)(b) at the location and followed § 87(2)(b)'s vehicle. The officers turned on their lights and sirens to pull § 87(2)(b)'s vehicle over. § 87(2)(b) immediately

stopped and the officers pulled up behind him. As the officers were exiting their vehicle to approach § 87(2)(b)'s vehicle, § 87(2)(b) sped off. The officers ran back to their vehicle, turned on the lights and sirens, and followed § 87(2)(b)'s vehicle. § 87(2)(b) drove through numerous red lights and stop signs. Pedestrians in the area had to jump out of the way, and cars swerved and honked. Each time the officers attempted to pull up alongside of § 87(2)(b)'s vehicle, § 87(2)(b) would swerve his vehicle in their direction. Eventually the officers were able to pass § 87(2)(b)'s vehicle. The officers then blocked § 87(2)(b)'s vehicle at the intersection of Atlantic Avenue and Buffalo Avenue. § 87(2)(b) stopped and exited his vehicle, and took off on foot. The officers were a few feet behind him and caught up with him in seconds. Either PO Cruz or PO Paray grabbed § 87(2)(b) from behind and placed him in a bear hug. In doing so, the officer made contact with § 87(2)(b)'s upper torso. At no time did the officer make contact with § 87(2)(b)'s neck or place him in a chokehold.

The officer who placed § 87(2)(b) in a bear hug pushed § 87(2)(b) to the ground. § 87(2)(b) landed on the front of his body. Once § 87(2)(b) was on the ground, the remaining three Anti-Crime officers piled on top of him. Initially, § 87(2)(b)'s arms were out, and he flailed them as the officers attempted to grab them. § 87(2)(b) also kicked his legs. § 87(2)(b) struck all four officers numerous times as he flailed his arms and kicked his legs. After a while, § 87(2)(b) tucked his arms beneath his torso and stiffened his body. Sgt. Mezzatesta dropped to his knees near § 87(2)(b)'s torso and pulled on one of his arms. The other officers also pulled on § 87(2)(b)'s arms. Numerous Impact officers were in the area and maintained a perimeter around the officers and § 87(2)(b). One or two of the Impact officers, whom Sgt. Mezzatesta could not identify, also assisted in § 87(2)(b)'s apprehension. At no time while § 87(2)(b) was on the ground did Sgt. Mezzatesta punch, kick, or otherwise strike § 87(2)(b). Sgt. Mezzatesta did not recall whether any other officer did so.

The officers repeatedly ordered § 87(2)(b) to stop resisting, but § 87(2)(b) just yelled, "They're not real cops!" At no time did § 87(2)(b) appear to lose consciousness. § 87(2)(b) did not complain that he had difficulty breathing. § 87(2)(b) did not appear to be in physical distress, but his behavior led Sgt. Mezzatesta to suspect that he was under the influence of a narcotic.

Eventually, the officers were able to use their combined force to wrestle § 87(2)(b)'s arms free and handcuff him. It took approximately four minutes to apprehend § 87(2)(b). No civilians attempted to become involved in the arrest. Two officers picked § 87(2)(b) up from the ground, and § 87(2)(b) continued to resist by moving his body back and forth and trying to push the officers away. § 87(2)(b) then went limp, and attempted to drop to the ground. The two officers held § 87(2)(b) up and led him toward a marked police van that had arrived. Sgt. Mezzatesta stood behind § 87(2)(b) as officers tried to help him into the van. § 87(2)(b) grabbed Sgt. Mezzatesta's genitals and squeezed. Sgt. Mezzatesta told § 87(2)(b) to let go of him and get into the van, but § 87(2)(b) did not comply. Sgt. Mezzatesta punched § 87(2)(b)'s wrist and forearm multiple times until § 87(2)(b) let go.

§ 87(2)(b) was transported to the 81st Precinct stationhouse. The Anti-Crime team followed in their vehicle. Once at the stationhouse, Sgt. Mezzatesta observed § 87(2)(b) in the holding cell area. § 87(2)(b) was alone in the cell. He was calm and quiet. Sgt. Mezzatesta did not observe any disturbance involving § 87(2)(b) inside of the holding cell area and was not aware of any disturbances that may have occurred. Sgt. Mezzatesta noticed a cut on § 87(2)(b)'s mouth, but did not see any other injuries on his person. § 87(2)(b) did not complain of injury. Sgt. Mezzatesta called for an ambulance to treat § 87(2)(b). § 87(2)(b) was taken to a hospital.

§ 87(2)(b)'s wife or girlfriend arrived at the 81st Precinct stationhouse to retrieve his property. She told Sgt. Mezzatesta that § 87(2)(b) had used LSD earlier that day and had been using it frequently. § 87(2)(b)'s vehicle had been seized as arrest evidence, and two pills of an unknown narcotic were found inside.

Subject Officer: PO JUANCARLOS CRUZ

- *At the time of the incident, PO Cruz was § 87(2)(b) old. He is a Hispanic male, § 87(2)(b), with black hair and brown eyes.*
- *PO Cruz worked from 9:30 a.m. to 8:05 p.m. with PO Paray, PO Clerge, and Sgt. Mezzatesta. They were assigned to Anti-Crime. They wore plainclothes and drove an unmarked vehicle.*

Memo Book

PO Cruz's memo book entries state that at 4:37 p.m., one person was arrested at Buffalo Avenue and Atlantic Avenue in regards to a 10-39 (other crime in progress). The arresting officer was PO Clerge (encl. 51-52).

Line of Duty Report

PO Cruz wrote the witness statement for PO Clerge's Line of Duty Report (encl. 53). PO Cruz wrote that he observed PO Clerge trying to apprehend a suspect who was resisting arrest. PO Clerge's right hand was crushed between the suspect and the ground, causing pain to PO Clerge's right hand.

CCRB Statement

PO Juancarlos Cruz was interviewed at the CCRB on August 8, 2013 (encl. 54-56). The beginning of his statement was consistent with that of PO Clerge. PO Cruz then stated that he, PO Paray, Sgt. Mezzatesta, and PO Clerge stopped § 87(2)(b)'s vehicle when it got stuck behind another vehicle under the Long Island Railroad at Buffalo Avenue and Ralph Avenue in Brooklyn. § 87(2)(b) exited the vehicle and began to run away. PO Paray and other officers chased § 87(2)(b) for about twenty feet and caught him on Atlantic Avenue. PO Paray grabbed § 87(2)(b)'s waist first. PO Paray and § 87(2)(b) fell to the ground. PO Cruz could not remember who made contact with § 87(2)(b) next because he was focused on parking the vehicle.

When PO Cruz approached, § 87(2)(b) was flailing his arms and trying to kick, punch, and bite the officers. § 87(2)(b) was behaving as though he was on drugs. He was biting and licking his lips, which, in PO Cruz's experience, is indicative of drug use. PO Cruz did not remember if § 87(2)(b) made any statements, but he recalled the other officers saying, "Police. Let me see your hands. Put your hands behind your back for us." PO Cruz grabbed § 87(2)(b)'s leg. § 87(2)(b) kicked PO Cruz.

PO Cruz had his gun out and by his side. Other uniformed and plainclothes officers and about ten civilians surrounded them. PO Cruz turned his attention to keeping the people around him back because he was concerned that someone would pull out a gun or take one of the officers' guns. He did not recall whether § 87(2)(b) was already handcuffed when PO Cruz stood up to control the crowd. The only force the officers used to handcuff § 87(2)(b) was to grab his arms and legs. No one in the crowd attempted to participate in the interaction.

PO Cruz helped the officers put § 87(2)(b) in the police vehicle. § 87(2)(b) was swinging his body violently, as if he wanted to punch the officers, but he was in handcuffs. PO Cruz did not know which officer transported § 87(2)(b) to the stationhouse. The next time he saw § 87(2)(b) was at the stationhouse. PO Cruz did not remember anything happening involving § 87(2)(b) at the stationhouse. He did not recall whether ESU was called to deal with PO Cruz for any reason. PO Cruz observed cuts on § 87(2)(b)'s hands, but he did not recall whether he saw injuries on § 87(2)(b)'s face. He did not remember hearing § 87(2)(b) complain about injuries. The investigator told PO Cruz that § 87(2)(b) went to the hospital with a black eye and a dislocated shoulder. PO Cruz did not know how § 87(2)(b) sustained these injuries. He suggested that they may have been sustained when § 87(2)(b) fell to the ground.

PO Cruz never grabbed or made contact with any part of § 87(2)(b)'s body besides his leg. PO Cruz never grabbed or made contact with § 87(2)(b)'s neck. PO Cruz never used a chokehold against § 87(2)(b). He never saw PO Paray or any other officer use a chokehold against § 87(2)(b). PO Cruz never punched, kicked, or struck § 87(2)(b). He never saw another officer punch, kick, or strike § 87(2)(b). PO Cruz did not hear § 87(2)(b) say that he could not breathe. § 87(2)(b) never appeared to lose consciousness.

Subject Officer: PO DAVID PARAY

- *At the time of the incident, PO Paray was § 87(2)(b)-old. He is an Asian male, § 87(2)(b) with black hair and brown eyes.*
- *PO Paray worked from 10:00 a.m. to 6:00 p.m., assigned to Anti-Crime with PO Cruz, Sgt. Mezzatesta, and PO Clerge. He was in plainclothes and assigned to a vehicle.*

CCRB Statement

PO David Paray was interviewed at the CCRB on August 8, 2013 (encl. 57-59). He did not have a copy of his memo book at the time of the interview because it was taken by Inspections. The beginning of his statement was consistent with that of PO Clerge. PO Paray then stated that he and his partners stopped § 87(2)(b)'s vehicle at Atlantic Avenue and Buffalo Avenue in Brooklyn when he got stuck in the middle lane under the train track. Once the officers were in front of § 87(2)(b)'s vehicle, § 87(2)(b) stopped driving. PO Paray did not recall whether there were any other police vehicles involved in the pursuit of § 87(2)(b).

§ 87(2)(b) exited his vehicle and started running away. PO Paray exited his vehicle and chased after § 87(2)(b). The chase only lasted a few feet. PO Paray and an unidentified uniformed officer, PO1, grabbed § 87(2)(b). PO Paray did not recall who PO1 was or which command he was from, but he was a white male. PO Paray grabbed § 87(2)(b)'s arm or shirt. He did not see where PO1 grabbed § 87(2)(b). The officers brought § 87(2)(b) to the ground due to the impact of grabbing him while he was running. The officers fell to the ground, as well. § 87(2)(b) landed face-first.

PO Paray and PO1 tried to place § 87(2)(b) in handcuffs. § 87(2)(b) screamed, "You guys are not cops." He tried to get up and bite PO Paray. PO Paray grabbed one of § 87(2)(b)'s arms and tried to put it behind his back. PO Paray "probably did punch" § 87(2)(b) but he "doubted" ever grabbing § 87(2)(b)'s neck. PO Paray did not know if punching § 87(2)(b) affected him, because § 87(2)(b) kept screaming, "You guys are not cops." He did not pay attention to whether any other officer punched, kicked, or struck § 87(2)(b). The officers eventually handcuffed § 87(2)(b). His demeanor did not change. At no point did PO Paray hear § 87(2)(b) say that he could not breathe. To PO Paray's knowledge, § 87(2)(b) never lost consciousness.

After handcuffing § 87(2)(b), PO Paray bent down to pick up his radio and watch, which had fallen. PO Paray probably helped officers put § 87(2)(b) into the van and bring him to the stationhouse. PO Paray did not recall seeing § 87(2)(b) in the holding cell at the stationhouse. He thought he saw an ambulance come for § 87(2)(b). PO Paray did not hear about any disturbance that occurred in the holding cell. He did not know whether ESU came to the stationhouse. PO Paray did not know why § 87(2)(b) was taken to the hospital. He thought it could have been because § 87(2)(b) was intoxicated by illegal drugs, since § 87(2)(b) had screamed that the officers were not real police officers, even though PO Paray had his shield around his neck.

PO Paray did not recall whether § 87(2)(b) appeared to have any injuries. PO Paray never heard § 87(2)(b) complain that he was injured. The investigator asked PO Paray how § 87(2)(b) might have sustained a black eye. PO Paray responded that it could have happened when the officers and § 87(2)(b) fell to the ground.

Witness Officer: PO FRANCISCO DELOSSANTOS

- *At the time of the incident, PO Delossantos was § 87(2)(b) old. He is a Hispanic male, § 87(2)(b), with black hair and brown eyes.*
- *PO Delossantos worked from 8:00 a.m. to 4:35 p.m., assigned to court. He did not recall whether he was in uniform or plainclothes.*

Memo Book

PO Delossantos's memo book entries state that he was in court on October 25, 2012 (encl. 47-48).

CCRB Statement

On June 6, 2013, PO Francisco Delossantos was interviewed at the CCRB (encl. 49-50). On October 25, 2012, PO Delossantos was assigned to court and appeared before the Corporation Counsel. He had no recollection of this incident. PO Delossantos viewed § 87(2)(b)'s arrest photo and listened to a brief synopsis of the incident, neither of which helped to refresh his memory. PO Delossantos reiterated that he ended his tour at 4:35PM, and that he had no recollection or notation that he engaged in police related functions after the end of his tour. PO Delossantos did not work with Officer Clerge or Sergeant Mezzatesta on the date of this incident.

Witness Officer: SGT WAYNE LOWERY

- *At the time of the incident, Sgt. Lowery was § 87(2)(b) old. He is a white male, § 87(2)(b), with brown hair and brown eyes.*
- *Sgt. Lowery worked from 2:50 p.m. to 11:47 p.m., assigned to desk officer at the 81st Precinct stationhouse. He was in uniform and did not have a partner.*

CCRB Statement

On July 19, 2013, Sgt. Lowery was interviewed at the CCRB (encl. 45-46). Sgt. Lowery did not have a memo book entry regarding this incident, but all activities and assignments that he performed were documented in the 81st Precinct's Command Log.

Sgt. Lowery had no recollection of this incident. The investigator showed him § 87(2)(b)'s arrest photo and provided a brief synopsis of the circumstances of his arrest, neither of which helped refresh Sgt. Lowery's memory. Sgt. Lowery did not recall speaking with PO Clerge, PO Paray, PO Cruz, or Sgt. Mezzatesta about § 87(2)(b)'s arrest. Sgt. Lowery had no recollection of an incident occurring in the holding cell area or any incident involving a prisoner who was acting out. Sgt. Lowery did not recall any incident in which ESU had to respond to the stationhouse to help deal with a prisoner. Sgt. Lowery reviewed the Medical Treatment of Prisoner Report that was prepared for § 87(2)(b) but still had no recollection of the incident. Sgt. Lowery also reviewed the Command Log entry generated for § 87(2)(b)'s arrest. Sgt. Lowery noted that his handwriting was in the entry and that § 87(2)(b) was removed to the hospital, but had no recollection of what led to § 87(2)(b)'s removal to the hospital.

Medical Records

Pre-Hospital Call Report

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

Pre-Arraignment Screening – Correctional Health Services

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Command Log

According to the Command Log from the 81st Precinct, PO Cruz arrested § 87(2)(b) and brought him to the 81st Precinct stationhouse at 4:50 p.m. on October 25, 2012. § 87(2)(b) s

physical condition was “cut to face.” § 87(2)(b) requested medical attention and was taken to § 87(2)(b) by EMS at 5:20 p.m. (encl. 65-70)

Prisoner Holding Pen Roster

According to the Prisoner Holding Pen Roster from the 81st Precinct, § 87(2)(b) Bowden, § 87(2)(b) and § 87(2)(b) were male civilians who may have been in the holding pen at the same time as § 87(2)(b) (encl. 75-80).

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of October 11, 2013, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to this incident (encl. 92).

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- In 1997, § 87(2)(b) filed a CCRB complaint alleging force, abuse of authority, and discourtesy against members of the NYPD. CCRB case number 9703634 was closed as unsubstantiated (encl. 5).

Subject Officers CCRB History

- PO Jimmy Clerge has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1).
- Sgt. Richard Mezzatesta has been a member of service for 11 years and there are no substantiated CCRB allegations against him (encl. 2).
- PO Juancarlos Cruz has been a member of service for nine years and there are no substantiated CCRB allegations against him (encl. 3).
- PO David Paray has been a member of service for eight years and there is one substantiated CCRB allegation against him. PO Paray received command discipline for abuse of authority in CCRB case number 201008878 (encl. 4).

Conclusion

Identification of Subject Officers

§ 87(2)(b) stated that an unidentified officers grabbed his arms and then placed him in a chokehold. § 87(2)(b) allegedly lost consciousness for a period of time, during which he sustained a dislocated shoulder, fractured nasal bone, cuts to his face and right knee, and a subconjunctival hemorrhage. § 87(2)(b) did not recall how he sustained any of these injuries. PO Clerge, PO Cruz, PO Paray, and Sgt. Mezzatesta each testified that they used physical force to apprehend and handcuff § 87(2)(b). None of the officers said that they placed § 87(2)(b) in a chokehold or saw an officer place § 87(2)(b) in a chokehold. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Force: An officer used a chokehold against § 87(2)(b)

The physical altercation between the officers and § 87(2)(b) after he exited his vehicle are in dispute. § 87(2)(b) alleged that he was placed in a chokehold by an officer who he could not see. He then lost consciousness and woke up in a holding cell. PO Clerge, PO Cruz, PO Paray, and Sgt. Mezzatesta denied placing § 87(2)(b) in a chokehold or seeing any other officer place him in a chokehold. The testified that officers grabbed § 87(2)(b) and went to the ground, where officers overcame his resistance and handcuffed him. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B- Force: PO David Paray used physical force against § 87(2)(b)

Allegation C- Force: PO Jimmy Clerge used physical force against § 87(2)(b)

Allegation D- Force: PO Juancarlos Cruz used physical force against § 87(2)(b)

Allegation E- Force: Sgt. Richard Mezzatesta used physical force against § 87(2)(b)

§ 87(2)(a) PHL § 18(6)
§ 87(2)(g) did not know how he sustained the injuries, as his last memory before being transported to § 87(2)(b) was allegedly being placed in a chokehold. § 87(2)(g)

PO Clerge stated that § 87(2)(b) sustained the head injuries by banging his head on the walls and bars of the holding cell. § 87(2)(a) PHL § 18(6)

§ 87(2)(g)
However, the Command Log states that § 87(2)(b) arrived at the stationhouse with a cut on his face, § 87(2)(g)

Sgt. Mezzatesta, PO Cruz, and PO Paray testified that § 87(2)(b)'s injuries may have resulted from being taken to the ground during his apprehension. Sgt. Mezzatesta, PO Cruz, and PO Clerge denied hitting or kicking § 87(2)(b)'s head or seeing any officer hit or kick § 87(2)(b). PO Paray stated that he "probably did punch" § 87(2)(b) in order to gain § 87(2)(b)'s compliance, but he did not specify where on § 87(2)(b)'s body. § 87(2)(g)

§ 87(2)(g)
According to the officers' statements, PO Clerge and PO Paray grabbed § 87(2)(b)'s body. The officers and § 87(2)(b) fell to the ground. § 87(2)(b) struggled by moving his arms and legs. PO Cruz and PO Mezzatesta joined PO Clerge and PO Paray in holding § 87(2)(b)'s legs still and pulling his arms behind his back to place them in handcuffs. § 87(2)(g)

While § 87(2)(b) did not allege that his arm and wrist were punched, Sgt. Mezzatesta testified that, once handcuffed, § 87(2)(b) squeezed Sgt. Mezzatesta's genitals and did not release them until Sgt. Mezzatesta punched § 87(2)(b)'s arm and wrist. § 87(2)(g)

§ 87(2)(g)

It is, therefore, recommended that **Allegations B, C, D, and E** be closed as **unsubstantiated**.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date